

26STCV06070 26STCV06070

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 26STCV06070 Hearing Date: July 29, 2026 Dept: 833

Metropolitan Adjustment Bureau Case No. 26STCV06070

Hearing:

July 29, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 Janna Holdings L.P. c/o San Pasqual Judge: Joseph Lipner

Fiduciary

Trust Company

[Tentative] Order on

Application for Writ of Attachment

INTRODUCTION

Plaintiff Metropolitan Adjustment Bureau ("Plaintiff") moves for a writ of attachment against Defendant Janna Holdings L.P. c/o San Pasqual Fiduciary Trust Company ("Defendant") in the amount of \$900,340.32.

The

Court DENIES the writ of attachment.

LEGAL STANDARD

“Upon the filing

of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an

application for the order and writ with the court in which the action is brought.” (Code Civ. Pro. § 484.010.) “Except as otherwise provided by statute, an

attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees.” (Code Civ. Pro. § 483.010.)

The court shall issue a right to attach order if the court finds all of the following:

(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.

(Code Civ. Pro. § 484.090.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 481.190.) “The application shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (Code Civ. Pro. § 484.030.) “In contested applications, the court must consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 80.) “The Attachment Law statutes are subject to strict construction.” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

DISCUSSION

A.

Probable Validity of Plaintiff's Claim

The application is based on Plaintiff's cause of action for breach of contract and breach of guaranty. To establish a claim for breach of contract, a plaintiff must prove: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1367.)

Plaintiff's

application states that it entered into a written agreement to act as a public insurance adjuster with respect to Defendant's insurance losses relating to the destruction of apartment buildings owed by Defendant in the Palisades Fire. Plaintiff says they performed all of its obligations under the Agreement, resulting in Defendant receiving insurance payments of \$10,147,879. Plaintiff invoiced Defendant for \$811,840.32 in fees based on the 8% fee due during the Agreement. After months of non-payment of the invoice, Defendant claims the Agreement is void. (Application, ¶ 7c.) Plaintiff states that copies of the agreement, related documents and invoices are attached as Exhibits 1 and 2. (Application, ¶ 13b.)

This evidence

shows a contract and invoices that Defendant has not paid. The exhibits show that the invoices are for \$400,000, \$308,842.74, and \$102,947.58. (Application, Exh. 2.) That adds up to \$811,790.32, which is a different number than the amount Plaintiff stated they invoiced in the application.

"[A]n attachment

may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (Code Civ. Pro. § 483.010, subd. (a).)

Here, the amount

in the exhibits differs from the amount in the application, so the amount is not "fixed or readily ascertainable."

Because

writs of attachment are subject to strict construction, the Court does not believe Plaintiff has shown the probable validity of the claim for breach of contract.

Therefore,

the Court DENIES the writ of attachment.

CONCLUSION

The Court DENIES the writ of attachment.

IT IS SO ORDERED.

Dated: July 29,
2026

Joseph Lipner

Superior
Court Judge